

LIVE



NEWSPAPER

28th FEB, 2019

ITEM WISE EDITORIALS

9th WEEK



INTERNATIONAL COURT
OF JUSTICE



CHAGOS ISLANDS ... MORAL DEFEAT FOR UK

UPSC CSE – GS I

GS I ... World History



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NEWSPAPER EDITORIALS

... DISCUSSION

28th FEBRUARY, 2019

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Decolonising Chagos

Britain must honour the ICJ opinion on returning the islands to Mauritius

The stunning opinion of the International Court of Justice in The Hague, that Britain's continued administration of the Chagos archipelago is unlawful, is a landmark in the effort to decolonise the Indian Ocean and return the islands to Mauritius. Britain's reaction, however, was predictable and disappointing. It said the ICJ's is an advisory opinion it will examine, and stressed the security significance of the islands. Since the late-1960s, the U.S. has maintained a military base on one of them, Diego Garcia. In 2016, Britain extended the lease to the U.S. till 2036 even as it said it would return the islands to Mauritius when no longer needed for defence purposes. Mauritius has made it clear that it does not intend to jeopardise the future of the military base. The agreement to allow Britain to administer the Chagos islands came in 1965, three years before Mauritius gained independence. Mauritius says Britain had made it a pre-condition for independence. This was endorsed by the ICJ, which noted that given the imbalance between the two, the agreement did not amount to "freely expressed and genuine will". It is a damning assessment of colonial legacies and the attempt by former colonial powers to justify or ignore the indefensible on the basis of 'agreements'.

Britain has tried to block Mauritius's claim to the islands at every stage, first by attempting to defeat a UN General Assembly vote in 2007 calling on the ICJ to deliver its opinion. When it lost this, London questioned the court's jurisdiction and Mauritius's version of how the deal had been thrashed out. However, Mauritius has had many countries on its side, including India, in written and oral submissions before the court. India has insisted that historical facts were not with Britain's interpretation and that its continued administration of the islands meant the process of decolonisation had not been completed. In an ideal world, Britain would be compelled to hand the islands to Mauritius. However, as the opinion against the construction of the separation wall in the Occupied Palestinian Territory in 2003 demonstrates, ICJ advisories are not always acted on. At the very least, Britain should show it respects the court's view and Mauritius's sovereignty, and make significant concessions – starting with matters ranging from fishing rights to compensation for the Chagossians, who have suffered through all of this. The ICJ 'opinion' draws the line on what is expected from Britain for it to be a global nation in tune with the new world order. It announces that the world has moved on from passive acceptance of the injustices of empire.

UPSC CSE – GS I

GS I ... World History

History of the world will include events from 18th century such as industrial revolution, world wars, redrawing of national boundaries, colonization, decolonization, political philosophies like communism, capitalism, socialism etc. - their forms and effect on the society.

3 Decolonising Chagos

Britain must honour the ICJ opinion on returning the islands to Mauritius

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INTERNATIONAL COURT OF JUSTICE



INTERNATIONAL COURT
OF JUSTICE

- ***It is the primary judicial branch of the United Nations.***
- ***Headquarters: Peace Palace in The Hague, Netherlands.***

1. It decides, in accordance with international law, disputes of a legal nature that are submitted to it by States (jurisdiction in contentious cases).
 - Article 94 establishes the duty of all UN members to comply with decisions of the Court involving them.
 - If parties do not comply, the issue may be taken before the Security Council for enforcement action.
2. It also gives advisory opinions on legal questions at the request of the organs of the United Nations, specialized agencies or one related organization authorized to make such a request (advisory jurisdiction).



INTERNATIONAL COURT
OF JUSTICE

- Britain's continued administration of Chagos Archipelago is unlawful. ICJ has given advisory opinion.
- Since late 1960s, U.S. maintained military base in one of them i.e., Diego Garcia.
- In 2016, Britain extended the lease to the U.S. till 2036, it also said it would return the islands to Mauritius, when no longer needed for defence purposes.
- The agreement to allow Britain to administer Chagos Islands came in 1965, three years before Mauritius gained independence.
- Mauritius says, Britain has made it a pre-condition for independence. This is endorsed by ICJ.
- The agreement did not amount to freely expressed and genuine will.

CHAGOS ISLANDS

Assumption island

Diego Garcia

Agalega island

Indian Ocean

AUSTRALIA

WHAT DO YOU UNDERSTAND BY ADVISORY OPINION?



- 1** Advisory proceedings begin with the filing of a written request for an advisory opinion.
- 2** The Court's advisory opinions are not binding. However, they carry great legal weight and moral authority.
- 3** Sometimes advisory opinions contribute to the clarification and development of International law and it strengthens peaceful relations between the States.

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